

10. Demurrer to Twelfth Cause of Action for Injunctive Relief

The City demurs to the Twelfth Cause of Action on the grounds that an injunction (1) is a remedy, not a cause of action, and (2) requires an underlying viable claim which has not been pled.

Given that the demurrer as to Petitioners' other substantive claims authorizing injunctive relief has been overruled (or sustained with leave to amend), the Court does not find that the injunctive relief cause of action fails for the failure to have a viable underlying claim.

While the title "Twelfth Cause of Action for Injunctive Relief" is arguably superfluous because an injunction is a remedy and not a cause of action, sustaining a demurrer on that ground would elevate form over substance. The Prayer properly requests injunctive relief, and the facts pled in Paragraphs 161-165 of the Twelfth Cause of Action support that request. Sustaining a demurrer simply because the facts supporting injunctive relief were alleged under the heading Twelfth Cause of Action rather than among the general allegations is a futile act.

Based on the foregoing, the demurrer to the Twelfth Cause of Action is OVERRULED.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of Angel Alfaro

23PR000065

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Co-Conservators are acting in the best interest of the Conservatee. Thus, the case is set for a Review–Biennial hearing in two years, on July 14, 2028, at 8:30 a.m. in Dept. B. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Sienna Notaro

26PR000113

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON – LIMITED CONSERVATORSHIP

TENTATIVE RULING: The matter is CONTINUED to August 11, 2026, at 8:30 a.m. in Dept. B to permit Petitioners to address the following issues:

1. There is no Proof of Service on paternal grandparents Francisco Walle and Nancy Notaro in the Court's file, as mandated by Probate Code Sections 1821, subdivision (b), and 1822, subdivision (b)(2).